

4	Johnson – Trust; 30-2024-01427023	<i>Johnson – Trust (2024-01427023) #4 Demurrer, MJOP, Motion to Quash, & Motion for Fees</i> Respondent Amy Lynn Bromley’s Demurrer to Petition (ROA 59) is OVERRULED. Respondent Amy Lynn Bromley’s Motion for Judgment on the Pleadings (ROA 61) is DENIED. Respondent Amy Lynn Bromley’s Motion to Quash All Petitioner-Initiated Subpoenas and for Stay of All Petitioner-Initiated Discovery Pending Ruling on Demurrer (ROA 60) is DENIED as moot. Respondent Amy Lynn Bromley’s Motion for Attorney Fees and Costs Pursuant to Probate Code §17211 (ROA 62) is DENIED. Respondent Amy Lynn Bromley’s Request for Judicial Notice (ROA 53) is GRANTED as to items 1, 2, and 3 and DENIED as to items 4 and 5. This proceeding arises out of the Patricia J. Johnson Revocable Trust dated February 11, 2019 (Trust). According to the petition, the settlor of the Trust, Patricia J. Johnson, passed away on January 8, 2023. (ROA 1 at 5:16-17.) Thereafter, her daughter Amy Lynn Bromley (Amy) became trustee. Pursuant to the terms of the Trust when it was created, Amy was to receive 50% of the Trust assets and her brothers Steven Edward Johnson (Steven) and Russell Phillip Johnson would each receive 25%. (ROA 2 at 3:18-27.) Under the terms of a document entitled “Chattel Schedule,” executed in October 2019, Amy allegedly was to receive receive 100% of the real property (the primary Trust asset), while Steven and Rusell would receive “Proceeds of Unsecured Promissory Note in the Sum of \$500,000 from Amy.” (ROA 2 at 4:23-5:14.)